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CASE #	CASE NAME	HEARING NAME
CVRI2407309	GARCIA VS AMERICAN HONDA MOTOR CO., INC., A CALIFORNIA CORPORATION	MOTION FOR JUDGMENT ON THE PLEADINGS ON 1ST AMENDED COMPLAINT

Tentative Ruling: PROOF OF SERVICE: Proper

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This is a lemon law case. On December 26, 2024, Plaintiffs Sergio Garcia and Nayelli Garcia (“Plaintiffs”) filed a Complaint against Defendant American Honda Motor Co., Inc. (“Defendant”) asserting causes of action for (1) violation of Song Beverly Act – breach of express warranty, and (2) fraudulent inducement – concealment. Defendant demurred to the fraudulent concealment cause of action, and on March 5, 2025, the Court sustained the demurrer with leave to amend.

On April 4, 2025, Plaintiffs filed a First Amended Complaint asserting the same causes of action against Defendant (the “FAC”). In the FAC, Plaintiffs allege that on February 19, 2023, they purchased a certified pre-owned 2020 Acura MDX manufactured and/or distributed by Defendant (the “Vehicle”). (FAC at ¶¶ 8, 11, 84.) At that time, she entered into a New Vehicle Limited Warranty contract with Defendant, which provides basic and powertrain coverage for the Vehicle. (FAC at ¶ 9.) The Vehicle was equipped with a defective computerized driver-assistance safety system called the “Honda Sensing” system and a defective an autonomous braking system called Collision Mitigation Braking System (or “CMBS”). (FAC at ¶ 85.) Plaintiffs presented the Vehicle to Defendant’s authorized facilities for repairs, but Defendant was unable to conform the Vehicle to the warranty after a reasonable number of repair attempts. (FAC at ¶¶ 92-94.)

Defendant again demurred to the fraudulent concealment cause of action and moved to strike Plaintiffs’ claim for punitive damages. On August 19, 2025, the Court overruled the demurrer and denied the motion to strike. On December 17, 2025, Defendant filed an Answer to the FAC.

Defendant now moves for judgment on the pleadings, arguing that Plaintiffs purchased the Vehicle used, and the Song Beverly Act does not cover used vehicles, including certified pre-owned vehicles.

In opposition, Plaintiffs argue that certified pre-owned vehicles sold with a new car warranty, like the Vehicle at issue here, are protected by the Song Beverly Act.

In reply, Defendant argues that vehicles sold with a certified pre-owned warranty are not “new” vehicles and are therefore not covered by the Song Beverly Act.

A motion for judgment on the pleadings has the same function as a general demurrer and the same rules govern, except as provided by C.C.P. § 438. (*Cloud v. Northrop Grumman Corp.* (1998) 67 Cal.App.4th 995, 999.) C.C.P. §438 sets forth the grounds and procedures for the motion, stating that a defendant's motion for judgment on the pleadings may be made on the grounds that the court lacks jurisdiction, or that the complaint does not state facts sufficient to support relief. (C.C.P. §438(c)(1)(B).) The grounds for a motion for judgment on the pleadings must appear on the face of the challenged pleading or be based on facts which the court may judicially notice. (*Richardson-Tunnell v. School Ins. Program for Employees* (2007) 157 Cal.App.4th 1056, 1061.) C.C.P. § 452 provides that "[i]n the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties." A motion for judgment on the pleadings may be granted with or without leave to amend. (C.C.P. §438(h)(1).) However, leave to amend is routinely granted. (*People v. \$20,000 U.S. Currency* (1991) 235 Cal.App.3d 682, 692.) Pleadings should have the same opportunity to cure defects in their pleadings as they would have had after a normal ruling on demurrer. (*MacIsaac v. Pozzo* (1945) 26 Cal.2d 809, 815.) Further, denial of leave to amend constitutes an abuse of discretion if the pleading does not show on its face that it is incapable of amendment. (*Virginia G. v. ABC Unified School Dist.* (1993) 15 Cal.App.4th 1848, 1852.) If leave to amend is granted, the party against whom the motion is granted must be given 30 days to file an amended pleading. (C.C.P. §438(h)(2).)

"The Song-Beverly Act is a remedial statute designed to protect consumers who have purchased products covered by an express warranty." (*Robertson v. Fleetwood Travel Trailers of California, Inc.* (2006) 144 Cal.App.4th 785, 798.) Song-Beverly states that "[a]ny buyer of consumer goods who is damaged by a failure to comply with any obligation under this chapter or under an implied or express warranty or service contract may bring an action for the recovery of damages and other legal and equitable relief." (Civil Code § 1794(a).) To assert a Song-Beverly claim against a manufacturer, the plaintiff must be a retail buyer of new consumer goods from a retail seller. (*Dagher v. Ford Motor Co.* (2015) 238 Cal.App.4th 905, 924; Civil Code § 1791(b).) Under the Act, "consumer goods" is defined as "any new product or part thereof that is used, bought, or leased for use primarily for personal, family, or household purposes, except for clothing and consumables." (Civil Code §1791.) "New motor vehicle" means "a new motor vehicle that is bought or used primarily for personal, family, or household purposes," and includes (among categories not relevant in this case), "a dealer-owned vehicle and a 'demonstrator' or other motor vehicle sold with a manufacturer's new car warranty." (Civil Code §1793.22(e)(2).) A demonstrator is a vehicle assigned by a dealer for the purpose of demonstrating qualities and characteristics common to vehicles of the same or similar model and type. (*Id.*)

Defendant argues that Plaintiffs' claims fail under *Rodriguez vs FCA US, LLC* (2024) 17 Cal.5th 189, because Plaintiffs did not purchase a new vehicle covered by a new car warranty. In response, Plaintiffs argue that they purchased a Certified Pre-Owned vehicle with a new warranty, and that is a "new" vehicle.

In *Rodriguez, supra*, the plaintiffs purchased a used vehicle that still had a remaining powertrain warranty. The plaintiffs sued the manufacturer contending that the

Song-Beverly Act was violated because the manufacturer did not refund or replace Plaintiffs' defective automobile as required under the statute. The manufacturer argued that the Song-Beverly Act did not apply because the vehicle was not a new vehicle. The California Supreme Court examined the statutory construction and meaning behind the phrase "new motor vehicle" and ultimately sided with the manufacturer's interpretation of the phrase – that a new motor vehicle is one with a manufacturer's new car warranty issued with the sale. The Court rejected Plaintiff's interpretation of "new motor vehicle," in which they argued that this phrase encompassed any vehicle sold with an unexpired manufacturer's new car warranty. (*Id.* at 197-198.) Specifically, the Court held: "We conclude that a motor vehicle purchased with an unexpired manufacturer's new car warranty does not qualify as a 'motor vehicle sold with a manufacturer's new car warranty' under section 1793.22, subdivision (e)(2)'s definition of 'new motor vehicle' unless the new car warranty was issued with the sale." (*Id.* at 196.)

In addition to *Rodriguez, supra*, Defendant also cites multiple Federal district court cases for its contention that a certified pre-owned vehicle warranty is not a new car warranty. (See, *Crescencio v. Ford Motor Co.* (C.D. Cal. 2025) 811 F.Supp.3d 1132, 1138; *Dubrosky v. Am. Honda Motor Co.* (C.D. Cal. 2025) 2025 WL 2451031, *9 ["Angulo does not allege that Honda issued him a new car warranty with the sale of his certified pre-owned vehicle"]; *Harris v. FCA US, LLC* (C.D. Cal. 2026) 2026 WL 1366027, *3-4.) However, these cases are not binding on this Court. Furthermore, these courts "acknowledge [] that this precise question — whether a CPO warranty constitutes a new car warranty — is unsettled under California law, with no clear answer from the California Supreme Court, California Courts of Appeal, or the Ninth Circuit. (*Crescencio, supra*, 811 F.Supp.3d at 1139.)

In addition, Plaintiffs are correct that in *Kiluk v. Mercedes-Benz USA, LLC* (2019) 43 Cal.App.5th 334, the court determined that the manufacturer was liable under the Song Beverly Act for defects in a used vehicle because it was directly involved in the sale of the vehicle to the plaintiff. (*Id.* at 339-340.) The *Kiluk* court, relying on section 1795.5,¹ first stated that "[t]he same protections [under the Song Beverly Act] generally apply to sale of used goods accompanied by an express warranty, except that the distributor or retail seller is bound, as opposed to the manufacturer..." (*Id.* at 336 [emphasis added].) It then stated that since § 1795.5 assumed the manufacturer and distributor/retailer were separate entities, in cases where the manufacturer sells directly to the public, it acts as a retailer, and the exemption for manufacturers does not apply. (*Id.* at 340.) The court there held that defendant Mercedes acted as a retailer in selling the plaintiff the certified pre-owned vehicle because it "partnered with a dealership to sell used vehicles directly to the public by offering an express warranty as part of the sales package, which is a crucial incentive for buyers like plaintiff." (*Ibid.*)

Following *Kiluk*, in *Ruiz Nunez v. FCA US LLC* (2021) 61 Cal.App.5th 385, 389, the court stated: "Under the lemon law, only distributors and retail sellers, not

¹ Civ. Code § 1795.5 discusses the obligations of a distributor or retail seller of used consumer goods. Specifically, it states: "Notwithstanding the provisions of subdivision (a) of Section 1791 defining consumer goods to mean "new" goods, the obligation of a distributor or retail seller of used consumer goods in a sale in which an express warranty is given shall be the same as that imposed on manufacturers under this chapter" except under limited circumstances. (Civ. Code § 1795.5.)

manufacturers, are liable for breach of implied warranties in the sale of a used car where, as here, the manufacturer did not offer the used car for sale to the public.” In *Ruiz*, the court found that the plaintiff failed to present any evidence that the defendant was a distributor or retailer. (*Id.* at 399.) In *Rodriguez, supra*, the Supreme Court confirmed that: “...for new products, liability extends to the manufacturer; for used products, liability extends to the distributor or retail seller and not to the manufacturer, at least where the manufacturer has not issued a new warranty or played a substantial role in the sale of a used good.” (*Id.* at 202 [emphasis added].)

In the present case, Plaintiffs allege that they purchased a certified pre-owned vehicle from an authorized Defendant dealership; Defendant issued a “New Vehicle Limited Warranty” on the Vehicle with that purchase; and they purchased the Vehicle based on the representations of Defendant’s authorized agent that the Vehicle had been certified by Defendant as safe pre-owned vehicle. (FAC at ¶¶ 8-9, 84-87.) These allegations are sufficient, for pleading purposes, to show that Defendant issued a new warranty on the Vehicle and “played a substantial role” in its sale. Accordingly, the motion is denied.

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CASE #	CASE NAME	HEARING NAME
CVRI2504589	PARRA VS HYUNDAI MOTOR AMERICA	MOTION FOR JUDGMENT ON THE PLEADINGS

Tentative Ruling: PROOF OF SERVICE: Proper

On the merits, the motion is **DENIED** in its entirety.

Moreover, on June 5, 2026, the Court ordered Defendant to meet and confer in person, or via phone or videoconference with Plaintiff for the purpose of determining whether an agreement can be reached that would resolve the objections raised in the judgment on the pleadings. As part of the meet and confer process, Defendant shall identify the specific causes of action that it believes are subject to a judgment on the pleadings and identify with legal support the basis of the deficiencies. Plaintiff shall provide legal support for its position that the pleading is legally sufficient or, in the alternative, how the First Amended Complaint may be amended to cure any legal insufficiency.

After meeting and conferring, Defendant shall, 10 days before the continued hearing date set, do one of the following: (1) vacate the hearing on the motion; (2) file with the Court a declaration stating the parties have agreed that Plaintiff will file an amended complaint before the next hearing date; or (3) file with the court a declaration stating the means by which the parties met and conferred and identify the specific objections in the motion and supporting memorandum of points and authorities that the parties were unable to resolve. (Code Civ. Proc., § 439 subd. (a)(3).)

The 10-day deadline was June 29, 2026. However, no declaration was filed as of July 7, 2026, and hearing on the JOP was not vacated.